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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff

v.

NIKODEM PIKOR

Defendant.

NIKODEM PIKOR

Third Party Plaintiff,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation

Third Party Defendant.

CIVIL No. 1RC19-1-0003776

ANSWER AND COUNTERCLAIM

ANSWER

Defendant and Third-Party Plaintiff, Nikodem Pikor, by and through his attorney, ANSWERS the complaint as follows:

Defendant acknowledges personal service upon his attorney of record pursuant to Hawai'i District Court Rules of Civil Procedure (HDRCP) Rule 5(b) on June 26, 2019.

1. Defendant admits this court has jurisdiction and venue is proper.

2. Defendant admits to paragraph 2 of exhibit 1 to the complaint and is without knowledge or information sufficient to form a belief as to the truth of the matters alleged as to the remaining allegations.

3. Defendant denies allegations in numbered paragraphs 3 and 4 of the Complaint.

4. Defendant is not a member of the military.

5. Defendant denies all other allegations not addressed in 1 – 4 above.

COUNTERCLAIM

1. Defendant is a resident of the Marine Surf Waikiki where Defendant used one of two elevators at the Marine Surf Waikiki to move storage plastic containers from his residence to a storage area.

2. As Defendant was removing a plastic storage box from the elevator, the Defendant was surprised by a hidden defect in the elevator doors.

3. Said defect allowed the hoistway (landing) doors to uncouple (separate) from the elevator car doors and, as the elevator doors automatically reopened, missing or improperly adjusted required safety stops permitted the landing doors to disengage from their guide tracks and be pushed off the end of the track instead of re-coupling with the clutch.

BREACH OF FIDUCIARY DUTY

4. Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC (hereinafter "AOAO Marine Surf") contracted for elevator maintenance purposes with Third -Party Defendant THYSSENKRUPP ELEVATOR CORPORATION (hereinafter "TEC") and failed to supervise or properly investigate Defendant Pikor's complaint of elevator defects and hold TEC responsible for proper maintenance, inspection, and/or adjustment of the door coupling mechanism and/or elevator door track stops.

5. Defendant Pikor claims that Plaintiff AOAO Marine Surf failed in its fiduciary duty owed to Defendant Pikor and all residents and guests of the Marine Surf Waikiki in that had Plaintiff AOAO Marine Surf and its board of directors and/or agents properly supervised the contractor and questioned the contractor's performance of the elevator maintenance contract, there would have been no money due by the AOAO Marine Surf, hence, no damages because the repair and adjustment of the elevator defect are covered by the terms of the TEC contract, titled

as a "PLATINUM PREMIER MAINTENANCE AGREEMENT" signed by the AOAO Marine Surf's managing agent, in which TEC promised that:

> ThyssenKrupp Elevator will perform the following services:
> - Examine your elevator equipment for optimum operation. **Our examination,** lubrication and **adjustment will cover the following components** of your elevator system:
>   - Control and landing positioning systems
>   - Signal fixtures
>   - Machines, drives, motors, governors, sheaves, and wire ropes
>   - Power units, pumps, valves, and jacks
>   - **Car and hoistway door operating devices and door protection equipment**
>   - loadweighers, car frames and platforms, and counterweights
>   - Safety mechanisms
> - Lubricate equipment for smooth and efficient performance
> - **Adjust elevator parts and components to maximize performance and safe operation** (emphasis added).

BREACH OF COVENANT; NEGLIGENCE

The failure of AOAO Marine Surf or its authorized managing agent to keep an ancient elevator in proper operating condition as required by the *Marine Surf Waikiki Declaration of Horizontal Property Regime §H(3)* and the failure of the Board of Directors to perform the duties of the Board according to the *By-Laws of the Association of Apartment Owners of the Marine Surf Waikiki Condominium* relative to the responsibility of "Management and operation of the project and maintenance, repair and rebuilding of the common elements. . ." at Article III, § 2(a) has caused the Defendant to expend time and money to protect his reputation from false accusations of causing damage to a common element.

PRAYER

Defendant and Third-Party Plaintiff prays for all relief as requested in the Third-Party Complaint and as follows:

1. Reimbursement of all expenses incurred as a result of the May 10, 2018 elevator incident as well a pre-trial expenses and attorney fees and costs.

2. An order enjoining AOA Marine Surf and its agents from further collection efforts and retaliation in any form.

Dated, Waimanalo, Hawai'i, July 4, 2019

Joseph N. A. Ryan, Jr. 8607
For Joseph Ryan, JR. AAL, LLLC.

DECLARATION

I, NIKODEM PIKOR, have read this counterclaim, know the contents, and verify the statements above are true and correct in my personal knowledge and belief. I DECLARE UNDER PENALTY OF LAW THAT THE ABOVE IS TRUE AND CORRECT.

Honolulu, Hawai'i, July 4, 2019

Nikodem Pikor